

officials' acts and omissions to the race of the victim-decedents. This inference is no
 « back [REDACTED] scenario which could be dominated by unpleaded facts."

[REDACTED]
 encompasses only one case of allegedly improper conduct compared with two cases
 [REDACTED] mere existence of disparate treatment--even
 widely disparate treatment--does not furnish adequate basis for an inference that
 the discrimination was racially motivated." Dartmouth Review, 889 F.2d at 20.

50 The amendment proffered by Judge failed to cure the deficiency identified by the
 court in its examination of the Third Amended Complaint. Granting the proposed
 amendment would have been futile. Under these circumstances, we conclude that
 the court did not abuse its discretion in denying Judge leave to file the Fourth
 Amended Complaint.

51 Affirmed. Each party to bear its own costs.

¹ The district court denied Judge's motion for leave to file a Fourth Amended Complaint.
 Judge appeals from this denial. As we explain infra, we conclude that the court's denial
 of Judge's motion for leave to file what would have been a fifth complaint was not an
 abuse of discretion

² [REDACTED]
 person who under color of any ... custom or usage, of any State or Territory ... subjects or
 causes to be subjected any citizen of the United States or other person ... to the
 deprivation of any rights, privileges, or immunities secured by the Constitution and
 laws." 42 U.S.C. § 1983

³ We have indicated that requiring the pleading of such facts serves at least three useful
 [REDACTED] notice of what the plaintiff's claim is and the
 grounds upon which it rests. [REDACTED]
 [REDACTED] litigation costs (and the associated impact of an improper threat
 of litigation) speak for requiring some specificity before permitting a claimant 'to drag a
 defendant past the pleading threshold.' " Boston & Maine Corp. v. Hampton, 987 F.2d
 [REDACTED] caseload
 crisis in the district courts weighs in favor of earlier disposition of baseless claims."
 Boston & Maine Corp., 987 F.2d at 865

⁴ See, e.g., Karen M. Blum, Heightened Pleading: Is There Life After Leatherman?, 44
 Cath. U.L.Rev. 59, 78-86 (1994) (noting lack of consensus, after Leatherman, in courts of
 appeals as to pleading requirements in section 1983 individual capacity suits where state
 of mind is at issue)

⁵ The heightened standard applied by the Fifth Circuit required that trial judges "demand
 that the plaintiff's complaints state with factual detail and particularity the basis for the
 claim which necessarily includes why the defendant-official cannot successfully maintain
 [REDACTED]
 [REDACTED]
 [REDACTED]
 state of mind is easy to allege and hard to disprove, insubstantial claims that turn on
 improper intent may be less amenable to summary disposition than other types of claims
 against government officials. This category of claims therefore implicates obvious
 concerns with the social costs of subjecting public officials to discovery and trial, as well
 as liability for damages.

« back

defendants improperly disposed of her brother's body, but rather that defendants' acts and omissions deprived her of the equal protection of the laws

15 [REDACTED]
[REDACTED]
own civil rights, and not those of Weems's other family members or of Weems himself, on behalf of Weems's estate. As to the former, it is not clear that Judge has standing to assert the rights of other family members. See *Benjamin v. Aroostook Med. Ctr.*, 57 F.3d [REDACTED] (1st Cir.1997) (the Civil Rights Act ... does not provide a cause of action on behalf of a deceased person based upon alleged violation of the deceased's civil rights which [REDACTED] (1980)

16 Insofar as Judge also alleges disparate treatment of drug addicts and poor people, those allegations are unlikely to rise to the level of an equal protection violation. See, e.g., [REDACTED] discrimination, such as on the basis of race or sex). See also *San Antonio Independent School District v. Rodriguez*, 449 U.S. 917, 937 (1981) (income level is not a suspect class under the Equal Protection Clause). We focus, for present purposes, on Judge's race-based contentions



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DANGEL, DONLAN AND FINE, LLP

COUNSELLORS-AT-LAW

BEACON HILL

February 9, 1999

First ADA John W. McEvoy, Jr.

East Cambridge, MA 02141

Dear Mr. McEvoy:

My client Rebecca Judge resides in Somerville. On November 6, 1993, my client's brother, Gary Weems, then age 33, died in the City of Lowell. Mr. Weems's dead body came to the attention of the Lowell police on the morning of November 6, 1993, and an autopsy was performed by Medical Examiner Gerald Feigin on November 8, 1993. The [REDACTED] intoxication" and stated that the manner of death "could not be determined."

Neither my client nor any other member of Gary Weems's family was notified of the discovery of Gary Weems's dead body. As a result, my client and other members of Gary Weems's family did not learn of Gary Weems's death until more than six weeks after the death, and Gary Weems was buried in potter's field in Lowell.

In November 1996, my client brought a civil rights suit against the City of Lowell, members of the Lowell Police Department and Medical Examiner Feigin claiming that the failure to notify Gary Weems's family of his death and gross deficiencies in the way the death was investigated had come about as the result of unconstitutional racial discrimination. That suit was ultimately dismissed by the federal district court in January 1998 and the dismissal was affirmed by the Court of Appeals in November 1998 on the ground that Ms. Judge had not pled sufficient facts to show that the deficiencies in question had come about as a result of racial discrimination, as opposed to other possible causes.

I am writing to you now because the discovery Ms. Judge was able to obtain in the civil rights suit shows that Gary Weems died under highly suspicious circumstances which appear to have never been properly investigated. In particular, witness statements indicate that Gary Weems died as the result of being injected with drugs by one or more other

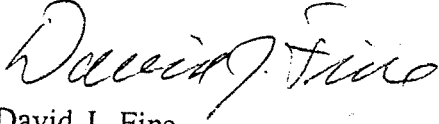
First ADA John W. McEvoy, Jr.
February 9, 1999
Page 2

persons at a time when he was unconscious, that money may well have been taken from him, and that, accordingly, he could have been murdered with robbery as the motive.

Ms. Judge and I request the opportunity to meet with you to discuss the prospect of your Office's investigating this matter.

Thank you for your consideration.

Very truly yours,


David J. Fine

DJF/js

C:\JUDGE\MCEVOY.LTR

DANGEL & FINE, LLP

ATTORNEYS AT LAW

BEACON HILL

October 27, 1999

First Assistant D.A. John W. McEvoy, Jr.
Middlesex District Attorney's Office
[REDACTED]
East Cambridge, MA 02141

Re: Death of Gary Weems

Dear Mr. McEvoy:

Thank you for your letter dated October 6, 1999.

I have discussed this matter further with my client Rebecca Judge, Gary Weems's sister. Ms. Judge and I believe it is important for your investigators to interview the following in connection with the circumstances of Gary Weems's death:

1. Person identified in Kevin Purtell's statement as "Grapes." In his November 7, 1993 statement (a copy of which is enclosed as Exhibit 1), Kevin Purtell states that the information he is reporting regarding the circumstances of Gary Weems's death was provided to him by

this Black Guy who I only know as "Grapes," who lives on Westford St., a blue and white house about 5 or 6 houses from Chemsford St., on the Right hand side. Grapes is a black guy, about 35 years old, real thin, who hangs around the Lemon Tree Store on Appleton Street.

According to Purtell, Grapes told Purtell Grapes was present when Bob (Robert Adams) gave Gary Weems the "shot of coke in the arm" which caused Gary Weems to die.

On a page of handwritten notes (a copy of which is enclosed as Exhibit 2), apparently written by Lowell Police Sergeant David Tousignant, the name "Robert Lee" has been written next to "Grapes," apparently indicating someone's identification of "Grapes" as Robert Lee.

2. Person identified in Kevin Purtell's statement as "Billy." According to Purtell's statement, Billy was present when Adams administered the fatal injection to Gary Weems. Regarding Billy, Purtell states:

Billy . . . hangs at the Shelter, usually out in front of the Lemon Tree or at the Insurance Company across the Street. He's skinny, maybe 5'5" maybe 37 or so, light brown hair, little moustache and wears glasses that have one of the stems missing. I believe that he also has a 6-man Jury appearance at Court on the 16th of the month as he was arrested in the Honeywell Building for B/E and Possession.

3. Person identified in both Kevin Purtell's statement and Robert Adams's statement as "Eddie." According to Adams's statement (a copy of which is enclosed as Exhibit 3), it was Eddie, not Adams, that gave Gary Weems the shot of cocaine that caused Gary to pass out. According to Purtell's statement, Eddie was present when Adams administered the fatal injection to Gary. Regarding Eddie, Purtell states:

Eddie's a Puerto Rican who also hangs at the Shelter, he's also maybe 5'5," black hair, moustache, in his early 30's, he weighs maybe 150/160 pounds.

4. Denise Weems, Gary Weems's wife, from whom Gary had been separated for several years at the time of his death but to whom Gary was still legally married. I believe [REDACTED] statement (a copy of which is enclosed as Exhibit 4) states that Gary Weems was supposed to [REDACTED] preceding the night Gary died. When I spoke to Denise Weems about this matter, Denise confirmed that she had indeed made arrangements to meet Gary in Lowell but that when she arrived, Gary was not there. Denise also told me that she discussed the circumstances surrounding Gary's death with both Kenneth Newhall and a woman named Nadine. Nadine told Denise that she had been with Gary Weems, Kenneth Newhall and other people on the night Gary died. Nadine also told Denise it was she who had identified Gary's body for the Lowell police on the morning of November 6, 1993.

5. The woman named Nadine. See 4 above. Nadine is referred to in a report of the Lowell Police Department (a copy of which is enclosed as Exhibit 5) incorrectly as "Nadine [REDACTED] weems, and she did not reside at 7 Walter Terrace, Somerville. The person close to Gary who resided at 7 Walter Terrace, Somerville was his sister, Rebecca Judge, my client. See 6 below.

[REDACTED]
[REDACTED]
that Gary weems's body showed needle tracts [sic] present in the left antecubital [sic] fossa" --

First Assistant D.A. John W. McEvoy, Jr.
October 27, 1999
Page 3

that is, needle tracks in the depression in front of the left elbow. The report does not say how many needle tracks there were or how fresh they appeared to be. Rebecca Judge has told me that Gary was not a drug addict. Clearly, Ms. Judge should be interviewed about this, for if this is so, it would appear to have very important implications for the case. Among other things, it would contradict Robert Adams's statement, which tries hard to make Gary appear to be a drug addict, whom Adams claimed to have "shot . . . up in the past" but not on the night in question.

Rebecca Judge can also cast light on other important aspects of the case.

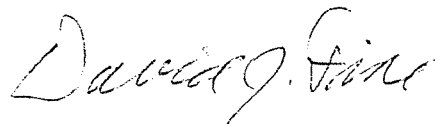
In addition to interviewing the foregoing witnesses, it is important for you to have a competent forensic pathologist review all the forensic evidence and all the papers in the medical examiner's files regarding this case. There are several reasons to believe that Dr. Feigin did a less than first-rate job. These reasons include: (1) the delay in the conduct of the autopsy (Gary

[REDACTED]

and freshness of the track marks on Gary Weems's arm; the evidence provided by the witness statements that Gary died as a result of an injection administered by another person while Gary was unconscious (the report reflects no microscopic inspection of the injection site); (3) apparent irregularity in the autopsy report (the autopsy report produced in Ms. Judge's civil suit, a copy of which report is enclosed as Exhibit 6, appears to have a page missing); (4) Dr. Feigin's failure to be in touch, prior to releasing Gary Weems's body for burial, with Ms. Judge or any of Gary Weems's other relatives, with the result that Gary Weems was buried as an unknown person in potter's field in Lowell.

Ms. Judge and I greatly appreciate your continuing interest in this matter.

Sincerely,



David J. Fine

DJF/js

C:\WINDOWS\DESKTOP\David Fine\Judge\McEvoy L2.wpd

DANGEL & FINE, LLP

UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

REBECCA JUDGE,
Plaintiff,

v.

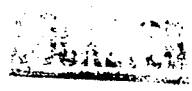
CITY OF LOWELL, ET AL.,
Defendants.

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ORDER

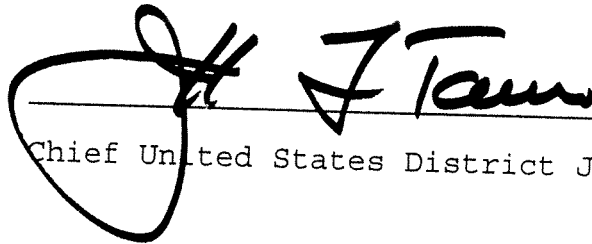
January 12, 1998



TAURO, Ch.J.,

Defendants' Motion to Dismiss Plaintiff's Complaint is
ALLOWED.

IT IS SO ORDERED.


Chief United States District Judge

UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

REBECCA JUDGE,
Plaintiff,

v.

CITY OF LOWELL, ET AL.,
Defendants.

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*
*
*
*

CA No. [REDACTED]

MEMORANDUM

FILED

[REDACTED], 1998

TAURO, Ch.J.,

Plaintiff, Rebecca Judge, brings this suit against Defendants City of Lowell, Police Officers John J. Sheehan, Daniel R. Brady, William M. Taylor, William F. Busby, Lewis Hunter, Barry Chevalier, David Tousignant and Garrett Sheehan in their individual capacities, (collectively the "Police Officer Defendants"), and Medical Examiner Gerald Feigin, M.D. in his individual capacity, for violations of the Equal Protection Clause of the Fourteenth Amendment of the United States Constitution, and against Gerald Feigin and Barry Chevalier for intentional infliction of emotional distress. Presently before the court are Defendants' motions to dismiss Plaintiff's complaint for failure to state a claim upon which relief can be granted.

I.

Background

Plaintiff, an African-American, is the sister of Gary Weems, who died on November 6, 1993. Plaintiff alleges that the Lowell

police discovered Weems' body on that date and that, at the time,

[REDACTED]

Plaintiff further alleges that the Lowell police failed to notify any family member of Weems' death. It is unclear how Plaintiff eventually became aware of Weems' death, but she alleges that it was six weeks after his body was found and two weeks after Weems' body was buried, as an unknown person, in the potter's field in Lowell.

After learning of Weems' death, Plaintiff, together with Gary Weems' wife, Denise, and Jestina Richardson, Ms. Weems' mother, visited the Medical Examiner's office in Tewksbury, Massachusetts. When they asked Defendant Feigin for proof that the body was that of Weems, he allegedly [REDACTED] angrily and shoved a photograph of the dead man so far into [Plaintiff's] face that she could not see it." Third Amended Complaint, ¶22. When she finally saw the photograph, Plaintiff alleges that she [REDACTED] and manifested sadness and grief." Id. She further contends that Defendant Feigin continued to be rude, yelling that [REDACTED] this," and provided them with false and misleading information.

Next, the women went to the Lowell Police Department, where they were allegedly directed to Defendant Chevalier. According to Plaintiff, he also provided them with false and misleading information regarding the death of Weems, and the belongings in his possession when he was found.

Plaintiff makes only one allegation that concerns her race explicitly. Plaintiff claims that, during their conversation with Defendant Chevalier, the officer used the street names of certain illegal drugs. When Plaintiff stated that she did not understand what he was referring to, the officer allegedly responded "in a manner which insinuated that because she was Black, she must know what he was referring to, and her claim that she did not was disingenuous." Third Amended Complaint, ¶23 (emphasis supplied).

Additionally, in her Third Amended Complaint, Plaintiff alleges that what happened in this case is part of a pattern and practice whereby Defendants use one level of care in the investigation of deaths of whites and a different, inferior level of care in the investigation of deaths of blacks. As evidence of this disparate behavior, Plaintiff cites to the case of Kasha Blount. Plaintiff alleges that Ms. Blount, a black pregnant teenager, was found dead under suspicious circumstances and yet Defendant Feigin, also the medical examiner¹ in that case, failed to properly investigate. In support of this allegation, Plaintiff attaches to her Third Amended Complaint newspaper articles from the Boston Globe detailing the Blount case and the family's concern that the case was mishandled by the medical examiner. Plaintiff further asserts that there is evidence that Gary Weems died under suspicious circumstances.¹ Plaintiff

1. Plaintiff attaches the official witness statements of three individuals who were allegedly friends of Gary Weems and were with him on the night he died. Although the statements are

concludes that the similarities between her case and the Blount case show that Defendant Feigin performed his job in a grossly deficient manner regarding two black persons who died under suspicious circumstances. Plaintiff submits that the number of cases where the circumstances of death are as suspicious as those in the case of Gary Weems and Kasha Blount are sufficiently small, and the deficiencies in Defendant Feigin's conduct sufficiently substantial, that racial discrimination may be inferred.

II.

Analysis

A. Dismissal Standard

The purpose of a motion to dismiss pursuant to Federal Rule of Civil procedure 12(b)(6) for failure to state a claim is to [REDACTED] the formality of the statement of the claim for relief." International Bank of Miami v. Banco de Economias y Prestamos, 55 F.R.D. 180, 185 (D.P.R. 1972). A defendant who presents a motion to dismiss admits, for the purposes of the motion, all of the [REDACTED] not admit any conclusion of law or unwarranted deductions of fact made therefrom." Id. In deciding such a motion, the court must,

not entirely consistent, all three agree that Gary was drinking heavily and doing drugs on the evening in question. Two of the three witnesses state that Gary passed out from all the drugs and alcohol he had consumed over the course of the night and that in an effort to revive him, one or two of the men partying with Gary gave him a shot of cocaine in the arm. According to the witnesses' account, Gary died promptly after receiving the injection.